_____ /22

1. The Judiciary Act of 1801 was passed by
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A. the Supreme Court, to increase its own power

B. the new Democratic-Republican Congress, to remove Federalist judges

C. Jefferson, to create more courts for the West

D. the outgoing Federalist Congress, to keep the courts Federalist

2. The Judiciary Act of 1801 cut the Supreme Court from six seats to five so that
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A. ties on the Court could be avoided

B. the Court would cost less to run

C. Jefferson would need two vacancies before he could appoint a justice

D. Marshall could become Chief Justice

3. Which best compares the impeachments of John Pickering and Samuel Chase?
1 Pts

A. Pickering, a district judge unfit to serve, was removed; Chase, targeted for his politics, was acquitted

B. Chase was removed, while Pickering was acquitted

C. Both were removed from office

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4. In an impeachment of a federal judge,
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A. the House charges by majority vote, and the Senate holds the trial, with two-thirds needed to remove

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5. A writ of mandamus is
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A. a president's pardon of a federal crime

B. the signed paper that makes someone a judge

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6. Marshall ruled that the Supreme Court could not give Marbury his commission because
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A. Jefferson had already given the job to someone else

B. Marbury had no legal right to the commission

C. Marbury had resigned before the case reached the Court

D. the law letting the Court issue that order added to the Court's original jurisdiction, which only an amendment can change

7. Napoleon offered to sell all of Louisiana mainly because
1 Pts

A. he wanted an alliance with the United States

B. the slave revolt in Haiti and disease had wrecked his army, and war with Britain was starting again

C. Spain forced him to sell it

D. the United States threatened to invade New Orleans

8. Monroe and Livingston were sent to France to buy
1 Pts

A. the Oregon Country

B. New Orleans and West Florida

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1 Pts

A. a constitutional amendment passed for the purpose

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10. The secession plot of 1804 came from
1 Pts

A. the War Hawks of the West

B. settlers in the Louisiana Territory

C. New England Federalists, who needed New York to join them

D. Southern planters who feared antislavery laws

11. Under the Constitution, a treason conviction requires
1 Pts

A. two witnesses to the same overt act, or a confession in open court
B. a two-thirds vote of the Senate
C. an order signed by the president
D. proof that the accused criticized the government

12. The 12th Amendment changed elections by
1 Pts

A. ending the Electoral College
B. having electors cast separate votes for president and vice president
C. limiting presidents to two terms
D. letting the Senate choose the president

13. Jefferson did not run for a third term in 1808 because
1 Pts

A. he had lost popularity after the Louisiana Purchase
B. he followed the two-term precedent Washington set
C. his party refused to nominate him
D. the Constitution limited him to two terms

14. Peaceful coercion was Jefferson's belief that
1 Pts

A. cutting off trade could force Britain and France to respect American rights without war
B. a strong navy would prevent war
C. paying tribute was cheaper than fighting
D. an alliance with France would protect American shipping

15. The Non-Importation Act of 1806
1 Pts

A. let the president reopen trade with whichever nation respected American rights first
B. reopened trade with every nation except Britain and France
C. ended all American trade with Europe
D. banned British goods that could be made at home or bought elsewhere

16. The Non-Intercourse Act of 1809
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17. The War Hawks, led by Henry Clay and John C. Calhoun, wanted war with Britain mainly to
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A. help France defeat Britain in Europe
B. end impressment once and for all
C. protect New England's merchants
D. gain territory, especially Canada and Florida

18. Which reason was NOT part of Madison's case for war in 1812?
1 Pts

A. British support for Native American attacks on the frontier
B. British interference with American trade
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D. taking Canada from Britain

19. At the Battle of Tippecanoe in 1811,
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A. Tecumseh defeated Harrison's army
B. William Henry Harrison attacked Tecumseh's settlement while Tecumseh was away recruiting
C. British troops invaded the Northwest Territory
D. the War of 1812 officially began

20. At the start of the War of 1812, the United States had
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C. a navy larger than Britain's
D. the support of Tecumseh's confederacy

21. The War of 1812 is called the most peculiar war in American history because
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A. Congress never formally declared it
B. no battles were fought on land
C. it began after its main cause had ended, and it was not fought for the reasons declared
D. the United States declared war on France and Britain at once

22. In the Barbary War, Jefferson
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A. closed American ports to Mediterranean trade
B. allied with Britain to fight the Barbary states
C. refused to keep paying tribute and sent the navy to North Africa
D. agreed to pay higher tribute to protect shipping

Answer key

The correct choice is highlighted. Choices are in a different order than on the real test.

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A. the Supreme Court, to increase its own power

B. the new Democratic-Republican Congress, to remove Federalist judges

C. Jefferson, to create more courts for the West

D. the outgoing Federalist Congress, to keep the courts Federalist

Why: It was a lame-duck law: the Federalists had lost the presidency and Congress but could still fill the courts.

2. The Judiciary Act of 1801 cut the Supreme Court from six seats to five so that
   1 Pts

A. ties on the Court could be avoided

B. the Court would cost less to run

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D. Marshall could become Chief Justice

Why: Shrinking the Court at the next vacancy kept it Federalist longer.

3. Which best compares the impeachments of John Pickering and Samuel Chase?
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A. Pickering, a district judge unfit to serve, was removed; Chase, targeted for his politics, was acquitted

B. Chase was removed, while Pickering was acquitted

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Why: Pickering deserved removal. Chase's acquittal set the rule that judges are not removed for their politics.

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Why: The legislative branch both accuses (House) and tries (Senate).

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A. a president's pardon of a federal crime

B. the signed paper that makes someone a judge

C. a court order telling an official to carry out an official duty

D. a court order to free a person held without charge

Why: The signed appointment paper is the commission, the thing Marbury never received.

6. Marshall ruled that the Supreme Court could not give Marbury his commission because
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A. Jefferson had already given the job to someone else

B. Marbury had no legal right to the commission

C. Marbury had resigned before the case reached the Court

D. the law letting the Court issue that order added to the Court's original jurisdiction, which only an amendment can change

Why: Marshall said Marbury was harmed and deserved a remedy, but the Court could not provide it.

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1 Pts

A. he wanted an alliance with the United States

B. the slave revolt in Haiti and disease had wrecked his army, and war with Britain was starting again

C. Spain forced him to sell it

D. the United States threatened to invade New Orleans

Why: Without Haiti as a base, Louisiana was useless to him, and he needed money for Europe.

8. Monroe and Livingston were sent to France to buy
1 Pts

A. the Oregon Country

B. New Orleans and West Florida

C. the entire Louisiana Territory

D. Texas

Why: They were authorized to buy only New Orleans and West Florida, then took Napoleon's offer of everything for $15 million.

9. To justify the Louisiana Purchase, Jefferson used
1 Pts

A. a constitutional amendment passed for the purpose

B. broad construction, the same reasoning Hamilton used for the Bank

C. a ruling by the Supreme Court

D. strict construction of the Constitution

Why: No amendment passed. Federalists called him a hypocrite for using Hamilton's argument.

10. The secession plot of 1804 came from
1 Pts

A. the War Hawks of the West

B. settlers in the Louisiana Territory

C. New England Federalists, who needed New York to join them

D. Southern planters who feared antislavery laws

Why: The first serious secession talk came from New England, not the South. Hamilton helped defeat it.

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A. two witnesses to the same overt act, or a confession in open court

B. a two-thirds vote of the Senate

C. an order signed by the president

D. proof that the accused criticized the government

Why: Treason is the only crime the Constitution defines. Marshall held to this rule, and Burr was acquitted.

12. The 12th Amendment changed elections by
1 Pts

A. ending the Electoral College

B. having electors cast separate votes for president and vice president

C. limiting presidents to two terms

D. letting the Senate choose the president

Why: The 1800 tie showed the old system did not account for parties. If no one has a majority, the House picks the president from the top three.

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1 Pts

A. he had lost popularity after the Louisiana Purchase

B. he followed the two-term precedent Washington set

C. his party refused to nominate him

D. the Constitution limited him to two terms

Why: Nothing stopped a third term then; he could likely have won.

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A. cutting off trade could force Britain and France to respect American rights without war

B. a strong navy would prevent war

C. paying tribute was cheaper than fighting

D. an alliance with France would protect American shipping

Why: The colonists had used boycotts the same way before the Revolution.

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A. let the president reopen trade with whichever nation respected American rights first

B. reopened trade with every nation except Britain and France

C. ended all American trade with Europe

D. banned British goods that could be made at home or bought elsewhere

Why: All trade ended is the Embargo (1807); everyone except Britain and France is the Non-Intercourse Act (1809).

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B. declared war on Britain

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Why: It replaced the Embargo at the end of Jefferson's term. Neither Britain nor France changed course.

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1 Pts

A. help France defeat Britain in Europe

B. end impressment once and for all

C. protect New England's merchants

D. gain territory, especially Canada and Florida

Why: Territorial expansion was their real goal, though it was never one of the declared reasons.

18. Which reason was NOT part of Madison's case for war in 1812?
1 Pts

A. British support for Native American attacks on the frontier

B. British interference with American trade

C. impressment of American sailors

D. taking Canada from Britain

Why: Expansion was the War Hawks' motive, but Madison's war message left it out.

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Why: Tecumseh then joined the British in Canada, who made him a general.

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Why: Britain controlled the sea and blockaded American ports; America's militia was huge but untrained.

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Why: Its biggest victory also came after the peace treaty was signed, yet the country came out prouder and more unified.

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A. closed American ports to Mediterranean trade

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C. refused to keep paying tribute and sent the navy to North Africa

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Why: European powers paid tribute because it was cheaper than war; when the price went up for the United States, Jefferson fought instead.